

PROFESSIONAL SERVICES AGREEMENT

This Agreement is entered into as of Sep 23, 2024 (the "Effective Date") by and between Cascade Works, with its principal place of business in Atlanta, GA ("Client"), and Summit Consulting, with its principal place of business in Denver, CO ("Provider"). The parties agree as follows:

1. Entire Agreement

This Agreement, together with its exhibits, constitutes the entire agreement between Cascade Works and Summit Consulting with respect to its subject matter and supersedes all prior or contemporaneous understandings. Any amendment must be in writing and signed by both parties.

2. Independent Contractor

Summit Consulting is an independent contractor and nothing in this Agreement creates a partnership, joint venture, agency, or employment relationship between the parties. Summit Consulting is solely responsible for its own taxes, insurance, and employee obligations.

3. Term and Renewal

This Agreement shall commence on the Effective Date and continue for an initial term of 24 months, unless earlier terminated as provided herein. The Agreement will renew automatically for successive terms of equal length unless either party gives written notice of non-renewal at least 15 days before the end of the then-current term.

4. Limitation of Liability

Except for breaches of confidentiality, neither party shall be liable for any indirect, incidental, special, or consequential damages arising out of this Agreement. Each party's aggregate liability shall not exceed the total fees paid or payable by Cascade Works in the twelve months preceding the claim.

5. Confidentiality

Each party agrees to hold in strict confidence all non-public information disclosed by the other party in connection with this Agreement, and to use such information solely to perform its obligations hereunder. This obligation survives termination of this Agreement for a period of 24 months.

6. Termination

Either party may terminate this Agreement upon 15 days' written notice to the other party. Either party may terminate immediately upon a material breach by the other party that remains uncured 15 days after written notice of the breach.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Olivia Moreau, Cascade Works

Amara Dubois, Summit Consulting